

		33.) These allegations are insufficient to show that defendants engaged in a violation of the Unlawful Competition Law. The demurrer as to all three causes of action is sustained with 20 days' leave to amend. Counsel for the parties are reminded to follow the California Rules of Court when submitting pleadings and motions.
	2023-1368679 Deleon vs. FCA US, LLC.	The Court notes no oppositions filed to any defense MIL. The Court rules as follows: Defense MIL 1: Granted. Defense MIL 2: Granted. Defense MIL 3: Granted in part; plaintiff may not rely on unreported complaints as repair opportunities, without prejudice to specific trial objections. Defense MIL 4: Granted. Defense MIL 5: Granted subject to the Evidence Code and Code of Civil Procedure and subject to offers of proof. Defense MIL 6: Granted in part; no hearsay complaints, internet postings, or other lawsuits absent independent admissibility and foundation. Defense MIL 7: Denied without prejudice, or granted only in the limited manner discussed above. Defense MIL 8: Granted in part; post-warranty complaints or repairs are excluded unless plaintiff establishes relevance to a defect first presented during the warranty period.
	2024-1429127 Gonzalez vs. Sewcalpros, LLC	Defense MIL No. 1 is GRANTED, without objection. Pursuant to Civil Code section 3295(d), evidence of defendant's profits, net worth, financial condition, or similar wealth evidence shall not be introduced unless and until the trier of fact first returns a verdict awarding compensatory damages and finds by clear and convincing evidence that defendant acted with malice, oppression, or fraud. Any issue concerning the presentation of financial-condition evidence shall be heard outside the presence of the jury before such evidence is offered. Defense MIL No. 2 is GRANTED IN PART and DENIED IN PART. Plaintiff may not introduce at trial any document that was responsive to defendant's discovery requests but was not produced during discovery unless plaintiff first establishes outside the presence of the jury that the failure to produce was substantially justified or harmless. Defendant's request for a blanket exclusion order as to broad categories of evidence is denied without prejudice. Any disputed item shall be addressed under Evidence Code section 402 before being shown to the jury. Defense MIL No. 3 is DENIED IN PART, WITHOUT PREJUDICE. While Plaintiff may not introduce hearsay,

speculation, or testimony lacking personal knowledge concerning the pregnancy status of other employees, the Court declines to issue a blanket pretrial order excluding all evidence concerning other employees' pregnancies or treatment. The Court can conceive of myriad examples of such evidence that might be both admissible and relevant, or inadmissible and irrelevant. But on the record before it, the Court is in the dark.

In its current form, MIL # 3 is overbroad. Specific objections may be raised at trial. The admissibility of comparator or "me too" evidence will be determined upon an adequate offer of proof and appropriate foundation.

The Court will hear from plaintiff's counsel concerning allegations of fabricated case quotations as noted in the reply, ROA 94, pages 3-4.

Defense MIL No. 4 is GRANTED, without objection. Plaintiff may not seek recovery for, introduce evidence of, or argue that Defendant is liable for alleged physical injuries or medical conditions arising from her employment, including but not limited to arthritis, back pain, TMJ, or similar industrial injuries. Such claims are outside the scope of the pleadings and, to the extent they arise from workplace injuries, are subject to the workers' compensation exclusive-remedy doctrine.

Nothing in this ruling precludes otherwise admissible evidence concerning emotional distress or physical manifestations of emotional distress, provided such evidence is relevant to claims and damages properly at issue in this action, and whose admissibility is determined outside the presence of the jury.

Defense MIL No. 5 is GRANTED IN PART and DENIED IN PART. Plaintiff may testify regarding her pregnancies, prior miscarriages, physical symptoms, emotional distress, communications with medical providers, medical leave, work restrictions communicated to her, and accommodations requested from Defendant.

Plaintiff herself may not offer medical diagnoses, medical causation opinions, or opinions that workplace stress caused, contributed to, or rendered her pregnancy "high-risk," caused pregnancy complications, or otherwise created specific medical conditions.

Specific objections may be raised at trial as the testimony develops.

The Court will hear from plaintiff's counsel regarding the authorities cited in the opposition and the allegations raised in the reply.

Defense MIL No. 6 is UNDER SUBMISISON. Defendant seeks a blanket order excluding a document entitled “Situation With Berenice – 3 Options” on the ground that Plaintiff allegedly obtained it from the desk of a company manager without authorization. On the present record, Defendant has not established that the *way* Plaintiff obtained the document renders it categorically inadmissible. While Defendant cites to *Pillsbury, Madison & Sutro v. Schectman* (1997) 55 Cal.App.4th 1279, 1289 for the notion that evidence the likes of which form the basis of MIL # 6 “*risks* being found to have violated protected rights” (emphasis added), it does not stand as a basis for prophylactic exclusion depriving a court of its general discretionary authority.

The document appears potentially relevant to issues concerning Defendant’s decision-making process regarding Plaintiff’s employment.

The Court expresses no opinion regarding authenticity, hearsay, foundation, completeness, or other specific evidentiary objections. The Court determines that a 402 hearing outside the presence of the jury should be conducted prior to any reference the document in question. At said hearing, the Court offers the following non-exclusive list of questions it has, and the answers to which will enable it to rule:

Who created it?
When?
For what purpose?
Is it a SewCalPros document?
Was it actually found on Ashley Dennis’s desk?
Under what specific circumstances did plaintiff acquire it?
Is the exhibit complete?
Can it be authenticated?
What applicable hearsay exceptions, if any, does Plaintiff rely upon to justify the document’s admission?

The Court will hear from plaintiff’s counsel regarding the authorities cited in the opposition and the allegations raised in the reply.